

भारतीय गैर न्यायिक

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Rs. 100

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सत्यमेव जयते

ONE
HUNDRED RUPEES

भारत INDIA
INDIA NON JUDICIAL

General Stamp Office, MU

L.S.V. No. 207

16 APR 2009

Proper Officer

SMT. P. S. SAWANT

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परवानाधारक मुद्रांक विक्रेता
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Ramchandra S. Shah

W.P.C.

DEED FOR CONSTITUTION OF ASSOCIATION OF PERSONS (AOP)

THIS DEED FOR CONSTITUTION OF ASSOCIATION OF PERSONS (AOP)

is made at Mumbai this 2nd day of April, 2009

BETWEEN

- 1) MR. PASCOAL TRINIDADE residing at Patina Villa, Dona Paula Circle, Panjim, Goa.
- 2) MR. VIKRAM SHAH residing at 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai.
- 3) MR. ARVINDER SINGH SETHI residing at flat no. 52, Ashiana bldg., 25 Neapean Sea Road, Mumbai.

ALL adults, individuals and Indian nationals having their office at Block- B, Wankede Stadium, D Road, Churchgate, Mumbai 400020 hereinafter referred to as

By ~~A~~ ~~Am~~ ~~3~~ ~~h~~ ~~O~~ & S.

"the Party of First Part"(which expression shall unless repugnant to the subject, context or meaning thereof be deemed to mean and include their respective legal heirs and assigns) of the One Part;

AND

- 1) MR. RAMESH SHAH aged about 48 years;
- 2) MR. BHARAT SHAH aged about 43 years;
- 3) MR. MAHENDRA LOONKAR aged about 34 years having their common office at 201, Commerce House, 140 Nagindas Master Road, Fort Mumbai- 400023;
- 4) MR. MURLIDHAR SADARANGANI aged about 51 years having address at S.3, Eden Hall, Dr. A.B. Road, Worli, Mumbai 400 018;

ALL adults, individuals and Indian nationals, hereinafter referred to as "the Party of the Second Part" (which expression shall unless repugnant to the subject, context or meaning thereof be deemed to mean and include their respective legal heirs and assigns) of the Other Part;

- 1) All above referred persons are collectively hereinafter referred as to "THE ASSOCIATES" (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and including their respective legal heirs and Assignor)
- 2) ALL the " THE ASSOCIATES" hereto have expertise in the field of real estate viz. developing and marketing of properties for the last 20 years and are associated with each other for last 3 years in respect of development of various properties acquired / purchased by them at village Bambolim, Panaji, Goa more particularly described in schedule I to V hereunder.
- 3) The Party of the First Part in the individual capacity of one of its associate viz. Pascoal Trindade have purchased various properties with in the limits of village

owned by them i.e. Pravar Invest Pvt. Ltd. have purchased various properties with in the limits of village panchayat curca, Bambolim and talavlim taluka tiswadi, registration sub-rdistrict of Ilhas, district of north Goa from its respective original owners vide various sale deeds as enumerated hereunder at item no. 4 to 5 collectively hereinafter referred to as "said various properties" and more particularly described in Schedule – I to Schedule – V hereunder.

Survey no.	Area (sq. mts.)	Purchased by
a) 93/2	35,600	Mr. Pascoal Trinidad
b) 93/3	26,825	Mr. Pascoal Trinidad
c) 93/4	35,075	Mr. Pascoal Trinidad
d) 105/1	2,825	M/s. Pravar Trade Invest Pvt. Ltd.
e) 105/2	4,875	M/s. Pravar Trade Invest Pvt. Ltd

4) The parties hereto have contributed in the ratio of 35:65 respectively for the purpose of acquisition / purchase of the said various properties till date and the Party of the First Part acknowledge the receipt of sum of Rs. 3,50,00,000/- to and in favour of Mr. Pascoal Trinidad and sum of Rs. 3,30,00,000/- to and in favour of M/s. Pravar Trade Invest Pvt. Ltd. from the Party of the Second Part through their firm M/s. SUMER BUILDERS for and towards their contributions.

5) "THE ASSOCIATES" have mutually agreed to incorporate a legal entity under the name and style of M/s. LOONKAR DEVELOPERS herein after referred to as the "Said AOP" for the purpose of commercial exploitation by development and construction on the said various properties acquired/purchased by them and / or sale of the said various properties to any prospective purchaser/s as may be jointly identified by the ASSOCIATES herein on as is where is basis.

6) The Party of the First Part state, confirm and declare that they have fully paid to the respective owners of the said various properties and there are no outstanding payments to be made to them in respect thereof and the title of the said various properties are clear and marketable. The title certificates are annexed hereto at annexure – I.

7) The Party of the First Part informed the Party of the Second Part and the Party of the Second Part is aware that there is an outstanding claim of comunidade of Bambolim, viz. association of the villagers for the allotment of 45 plots of 252 sq. mtrs. each in the above referred properties 1, 2 and 3.

However, the Party of the First Part have negotiated with the committee members of the said comunidade of Bambolim and worked out a deal wherein they have agreed with the Party of the First Part to surrender/relinquish their said claim in lieu of receipt of lump sum monetary compensation.

8) The Party of the First Part specifically state that :

- a) there are no outstanding encumbrances, mortgages, lien, notices, for requisition or reservation or assignments
- b) save and except the claim of the said comunidade the Bambolim the title of the said various properties are clear and marketable.
- c) they or their predecessors in title or any one claiming under them have not granted any right of way or easement or license or any other rights to any person over the said various properties or any part thereof.

9) The ASSOCIATES herein are aware of the fact that part of the said various properties are falling under settlement zone of the existing operative development plan of the



10) The ASSOCIATES herein have mutually discussed to commercially exploit the said various properties either by way of development and construction of apartments / villas / row houses / bungalow plots, etc. hereinafter referred to as the said project or sale the said various properties to any prospective and intending buyers on as is where is basis and equally share the profits generated from the sales of the said project and/or the sale of the said various properties on as is where is basis.

The terms and conditions mutually agreed after discussion by and between the ASSOCIATES herein as aforesaid and sharing of the profits are as recorded hereunder.

11) The parties are now desirous of reducing into writing the rights and responsibilities of the Associates, individually as also collectively and the terms and conditions for governance of the said AOP as also amongst "THE ASSOCIATES" of the AOP.

NOW THESE PRESENTS WITHNESETH and it is recorded by and between the parties hereto as here under.

1. The recital hereinabove forms an integral part of this DEED.
2. The parties hereto shall constitute "Association of Persons" viz. AOP in the name and style of "Loonkar Developers" having equal share viz. 50% to each party.
3. The registered office of the said AOP shall be at 220, Commerce House, 140 Nagindas Master Road, Fort Mumbai- 400023 and the Branch office as may be mutually decided between the Associates.

4. The said AOP shall open Bank Account/s in the mutually decided Bank/s for all its



and 31st March every year by the Party of the Second Part. It is specifically agreed by the parties hereto that all the banking operations/transactions shall be done/conducted in respect of the development/deposit of Gross revenue of the said project from the said bank account/s only.

5. "THE ASSOCIATES" shall maintain the following shareholding pattern during the subsistence of this AOP:-

a) Mr. Pascoal Trinidad	17
b) Mr. Vikram Shah	17
c) Mr. Arviner Singh Sethi	16
d) Mr. Ramesh Shah	17
e) Mr. Bharat Shah	8.5
f) Mr. Mahendra Loonkar	8.5
g) Mr. Murlidhar Sadarangani	16

"The Associates" hereto undertake upon themselves to always maintain their share holding in the ratio and manner enumerated herein above and that they shall not alter the same save and except with the unanimous consent in writing from all "THE ASSOCIATES" of the said AOP.

6. "THE ASSOCIATES" shall constitute the governing body of the said AOP and the quorum of any meeting shall have at least four associates viz. two associates from each party and all the resolutions shall have signature of all the associates present in the meeting.

7. THE OBLIGATIONS OF

a) the Party of the First Part are:



- ii. To execute final conveyance deed of the said various properties to and in favour of the said AOP viz. Loonkar Developers.
- iii. To give alternate plots to said comunidade the Bambolim in lieu of surrender/relinquish of their claim of the said 45 plots of 252 sq. mtrs. in pursuance of the Decree passed in respect thereof, and all the said alternate 45 plots to be so given shall be totally out of the account of the Party of the First Part. Alternatively to pay monetary compensation to the said comunidade the Bambolim in lieu of surrender/relinquish of their claim of the said 45 plots of 252 sq. mtrs.
- iv. To initiate and file such suits, petitions, memorandum for the purpose of enforcing the rights of and upon said various properties.
- v. To pay losses or claims raised by municipal authorities for infringement of any law or not complying with the rules and regulations.
- vi. To pay and settle any claim of any labour engaged for construction activity or other related agencies for injury / damage caused during the course of carrying out the said project.
- vii. To keep the party of the second part indemnified for any deficiencies in execution / completion of the said project.

The Party of the First Part agrees and undertakes to fulfill all the above obligations (more specifically to settle all the claims of the said comunidade of Bambolim and obtain their respective surrender/relinquishments on or before 30/9/2009.

It is specifically agreed that Party of the Second Part shall provide the funding if required to obtain such surrender / relinquishments. However, it is specifically agreed by the Party of the First Part that they shall reimburse the same to the Party of the

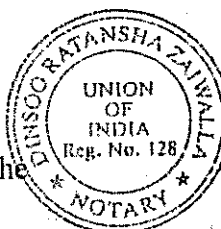
Second Part from and out of the Gross revenue receivable by the Party of the First



- i. To provide funding for all the expenses/costs/charges required for stamp duty registration charges, legal and professional fees and
- ii. To provide funding for all the expenses/ costs/charges required for and incidental to the development and construction on the said various properties viz. the said project, including the payments to various authorities for obtaining necessary approvals/sanctions/NOCs/permissions etc., and/or any other cost charges and expenses for the development and construction of the said project and the said various properties as agreed by and between the parties.
- iii. To appoint professionals/agencies to carry out the survey for the planning of the said various properties.
- iv. To obtain permissions/approvals/sanctions as may be required from all the concerned Authorities to carry out the development and construction and/or plotting on the said various properties for effective commercial exploitation.
- v. To pay the necessary charges, premiums, hardships, levies, assessment charges, fines, penalties, etc. for obtaining the aforesaid permissions/approvals/sanctions.
- vi. To obtain the Completion Certificate / Occupation Certificate.
- vii. To pay the suppliers, contractors, sub-contractors and other agencies engaged by the Party of the First Part from time to time.
- viii. To pay the hire charges for the equipments, centering materials,
- ix. To pay for the administration and office expenses.

8. It is specifically agreed and understood by and between the parties hereto that all the

operations / administration of site activities including the development of



advise the Party of the Second Part for making the payments for such management and operations.

9. It is specifically agreed by the parties hereto that the Party of the Second Part shall be entitled to receive interest on the entire funding contribution by them @ 15 % p.a. and such interest shall be credited to their account upon completion of the said project.

10. The profits and / or losses of the said project shall be determined on annual basis and same shall be arrived at after debiting the following expenses from the Gross sale revenue

- i. Cost of acquisition / purchase of the said various properties.
- ii. Expenses pertaining to stamp duty, registration charges and incidental expenses thereto.
- iii. Out of pocket expenses made for obtaining change of zoning.
- iv. Cost charges and expenses made for obtaining approvals / sanctions/ permissions / nocs for the said project.
- v. Professional charges paid to the architects / RCC consultants / landscape architect / surveyors / legal advisor / auditors etc.
- vi. All expenses related to site office and administration
- vii. Actual cost of construction / infrastructure development of the said project including labour charges / hire charges / materials / equipments etc.
- viii. Marketing expenses / charges at actual.
- ix. Any other cost charges and expenses other than above mutually agreed by and between the parties hereto.

For the purpose of this DEED the expression "Gross Sales /Gross sale Revenue" shall mean the Gross consideration mentioned in any DEED or other document for sale of the saleable areas including developed plots / Row Houses, / Bungalows / Villas / Apartment etc and adjoining terrace/garden spaces/open & stilt car parkings, incidental charges, club membership fees, advertisement, sponsorships etc. in the said project.

11. It is specifically agreed by and between the parties hereto that mandate/instruction shall be given to the concerned bank to transfer 10% of the Gross revenue receipt deposited in the said a/c's to be transferred to the account of the Party of the First Part forthwith.

From and out the balance amount of the said Gross revenue the Party of the Second Part shall be entitled to withdraw the funding provided by them till such time and the balance amount thereto shall be utilized for further expenditure on the project.

It is specifically understood by the parties hereto that whilst finalization of the accounts of the said AOP the amount so transferred to the account of the Party of the First Part shall be debited from the amount of the net profit receivable by them as provided herein.

However, its is specifically agreed by the Party of the First Part that they shall reimburse to the Party of the Second Part if the amount received by them is in excess i.e. over and above the net profits receivable by them as provided herein upon finalization of the profits of the said project.

12. All the revenues generated by way of sales, sponsorship, advertisement etc. or on any other account in respect of the said project shall be deposited in the designated said bank accounts of the said AOP only.

13. The marketing of the said project shall be done by the party of the Second Part



14. It is further specifically agreed by and between parties hereto that subject to the fulfillment and compliances by the parties hereto of the obligations as set out in clause 7 (a) and (b) within the time period as stipulated hereinabove for the same, in the event of the non-commencement / non-starting of the said project as envisaged herein on or before 30/9/2009 for whatsoever reason, the parties hereto shall jointly identify purchasers for the said various properties and sell the various properties on outright basis and out of the consideration that will be received from such sales, the Party of the Second Part shall be first entitled to appropriate the same towards recovery of all the moneys spent by them (including the land cost) in the said project thereafter the Party of the First Part shall be entitled to appropriate the same towards the recovery of the said 35% (as referred to in recital 4 hereinabove) spend by them towards the land costs and then the balance shall be equally distributed between the parties as agreed herein.
15. The parties hereto shall indemnify and keep indemnified, saved, defend and harmless the other party from or against any liability arising from non-payment of any taxes, levies, cess etc. on gross and / or net income accruing from the said project.
16. The parties hereto agree and record that they shall from time to time hold site meetings to review the progress of the work as per the mutually decided schedule. It is agreed and confirmed that any change or modification in any of the terms as agreed herein shall be rendered in writing in the form of supplementary Indenture hereto and not otherwise.
17. Any notice to be given by one party to the other shall be deemed to have been given by sending a "registered post acknowledgement due" letter addressed to the other party at the address mentioned at the beginning of this DEED of the said parties.
18. The said AOP shall prepare and maintain their regular books of account at the project office and the said account/s shall be available for scrutiny to the associates during

The appointment of external auditors and their remuneration shall be made with the written consent of the parties hereto each year.

19. "THE ASSOCIATES" expressly agree to execute any further and / or other document/s as may be required to give proper and legal effect to the arrangement envisaged herein.
20. It is specifically agreed by and among "THE ASSOCIATES" hereto that understanding as envisaged herein in this DEED is restricted only to the said various properties and not applicable to any other immovable property / ies at anywhere.
21. The parties hereto have come together and have agreed to this DEED for the very specific purpose of acquiring developing and commercially exploiting the said various properties and that the arrangement as laid out in these presents shall automatically and on completion of all the transactions i.e. construction and development, sale, receipt of Gross revenues and finalization of all the account / s between the parties hereto in all respect.
22. The parties hereto irrevocably agree that under no circumstances these presents shall be terminated singularly by one single party to these present. Any breach of the terms on the part of any party hereto shall result in to aggrieved party demanding specific performance of this DEED and not the termination of this DEED.
23. No waiver of any breach of any provision of this DEED shall constitute a wavier of any prior, concurrent or subsequent breach of the same of any other provisions hereof, and no wavier shall be effective unless made in writing and signed by waiving party.
24. This DEED shall be governed by and construed in accordance with the laws of India.
25. No variation of this DEED shall be binding on any part unless such variation is in writing and signed by each Associate.

rights in or under this DEED (including the rights under this clause) to their respective spouse and lineal decedents.

27. The parties, differences, non-performance, non-payment or any questions of whatsoever nature which shall arise either during the subsistence of this DEED or afterwards between the parties hereto or touching these presents or the constructions or application thereof or as to any act, deed or omission of any of the parties hereto in any way relating to these presents or in implementation thereof shall be referred to arbitration in accordance with the Arbitration and Conciliation Act, 1996 or any statutory modification or re-enactment thereof for the time being in force. The entire Arbitration proceedings shall be held, conducted and preceded in the City of Mumbai only.

IN WITNESS WHEREOF THE 'ASSOCIATES' HAVE HEREUNTO SUBSCRIBED THEIR RESPECTIVE HANDS IN THEIR FULL LEGAL CAPACITY IN CONFIRMATION AND ATTESTED SEAL ON THIS.

SCHEDULE-I ABOVE REFERRED TO

All that property bearing Survey No. 93/2 situated at Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring 35,600 m² approximately, within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and bounded as follows:

On the North :	By Bambolim Village Road & Plot surveyed under No. 107/7-11
On the South :	By Plot surveyed under No. 103
On the East :	By Plot surveyed under No. 93/1
On the West :	By Plots surveyed under Nos. 93, 106, 107/1, 2, 3, 5 and 6.

SCHEDULE-II ABOVE REFERRED TO



approximately, within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in the land registration office nor enrolled under matríz and bounded as follows:

On the North : By Plot surveyed under No. 103
 On the South : By Plot surveyed under No. 94
 On the East : By Plot surveyed under No. 93/1
 On the West : By the Plot of G.M.C. surveyed under Nos. 102/3 and 104.

SCHEDULE-III ABOVE REFERRED TO

All that property bearing Survey No. 93/4 situated at Bambolim known as "BAILEM FONDIEM", "SAVELI GALI" or "OHOR" admeasuring 35,075 m² approximately, within the limits of Village Panchayat Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of Ilhas, District of North Goa and neither described in the land registration office nor enrolled under matríz and bounded as follows:

On the North : By Plot surveyed under No. 94
 On the South : By Village boundary of Siridao
 On the East : By Plot surveyed under No. 93/1
 On the West : By Plot Nos. 95, 96 & 97.

SCHEDULE-IV ABOVE REFERRED TO

All that agricultural rustic property known as "Golialem" or "Fapriacho" situated at Bambolim Tiswadi Taluka Goa, not registered in the Land registered office of Ilhas Taluka Goa but enrolled in the Taluka revenue office under Matríz No. 81 corresponding to Survey No. 105, sub-division 2 of Village Bambolim, Taluka Tiswadi, Goa admeasuring 4,875 sq.mtrs. approximately and bounded as follows:

On the East : By the property of Fabrica da Igreja de Bambolim
 On the West : By the property of Henrique Jose Abreu



SCHEDULE-V ABOVE REFERRED TO

All that agricultural rustic property known as "Golialem" situated at Village Bambolim not described in the Land Registration office of the Judicial Division of Ilhas and registered in the respective "matriz predial" under No. 82 and mentioned in the deed of acquiescence under serial number 11: corresponding to survey no. 105/1 of Village Bambolim, Taluka Tiswadi Goa admeasuring 2,825 sq.mtrs. approximately and bounded as follows:

On the East : By the property of Pedro Lourenco de Abreu;
 On the West : By the property of Quesoa Porobo Moliencar;
 On the North : By Public road;
 On the West : By the property named "Horta do Vigario da greja de Bambolim".

SIGNED, SEALED & DELIVERED)

By the 'ASSOCIATES' within named)

'PARTY OF THE FIRST PART':-)

(1) MR. PASCOAL TRINIDADE)

(2) MR. VIKRAM SHAH)

(3) MR. ARVINER SINGH SETHI)

In the presence of)

CERTIFIED TRUE-COPY
OF THE ORIGINAL DOCUMENT,

DINSOO ZAIWALLA,
NOTARY, UNION OF INDIA.

SIGNED, SEALED & DELIVERED)

By the 'ASSOCIATES' within named)

'PARTY OF THE SECOND PART':-)

(1) MR. RAMESH SHAH)

(2) MR. BHARAT SHAH)

(3) MR. MAHENDRA LOONKAR)

(4) MR. MURI IDHAR SADARANGANI)